

Court No. - 2

Case :- WRIT - C No. - 37209 of 2011

Petitioner :- M/S Shree Gopala Iron (India) Pvt. Ltd.

Respondent :- Paschimanchal Vidyut Vitran Nigam And Others

Petitioner Counsel :- Mayank Agrawal

Respondent Counsel :- Pankaj Kumar Shukla, Amarendra Nath Singh

Hon'ble Ashok Bhushan, J.

Hon'ble Bharati Sapru, J.

Heard learned counsel for the petitioner, Sri Pankaj Kumar Shukla, Advocate appearing for respondents no. 1 and 2 and Sri A.N. Singh has appeared on behalf of respondent no. 3.

By this writ petition, the petitioner has prayed for quashing the demand notice dated 30/5/2011 passed by respondent no. 2. Learned counsel for the petitioner submits that security is being asked under Para 4.20 of U.P. Electricity Supply Code, 2005.

Learned counsel for the petitioner submits that similar writ petition has been entertained and interim orders have been passed by this Court. Reference has been made to the order dated 23rd June, 2009 in Writ Petition No. 30582 of 2009 (M/s. Vehlana Steels & Alloys Pvt. Ltd. and another Versus Paschimanchal Vidyut Vitran Nigam Ltd. and another.)

Learned counsel for the respondents submits that in several matters identical questions are involved.

List this writ petition along with other similar matters. Learned standing counsel shall give a list of cases in which similar issues are related of the year 2009.

In view of interim order as already granted in writ petition no. 30582 of 2009 as referred above it is provided without prejudice to the right and contention of the parties that until further orders of this Court the respondents are restrained from demanding additional security from the petitioner.

Order Date :- 11.7.2011

SB

Court No. - 29

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Respondent :- Paschimanchal Vidyut Vitran Nigam And Others

Counsel for Petitioner :- Mayank Agrawal

Counsel for Respondent :- Pankaj Kumar Shukla, Amarendra Nath Singh, S.C.

Hon'ble Tarun Agarwala, J.

Hon'ble Vipin Sinha, J.

Learned counsel for the petitioner states that the writ petition has become infructuous.

The writ petition is, accordingly, dismissed as infructuous.

Order Date :- 12.9.2016

AKJ

(Vipin Sinha, J.)

(Tarun Agarwala, J.)